



Family Allowances and National Insurance Act 1964

1964 CHAPTER 10

An Act to extend the meaning of the word “child” in the Family Allowances Acts, the National Insurance Acts and the National Insurance (Industrial Injuries) Acts, to increase widowed mother’s allowance and certain other benefits under the National Insurance Acts and the National Insurance (Industrial Injuries) Acts paid in respect of or by reference to children, to require the disregard of part of any such benefit in arriving at the amount of a national assistance grant, and for certain other purposes, and to relax the earnings rules relating to widow’s benefit and retirement pensions, and for connected purposes. [27th February 1964]

BE IT ENACTED by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Family Allowances Acts 1945 to 1961, the National Insurance Acts 1946 to 1963, the National Insurance (Industrial Injuries) Acts 1946 to 1963 and this Act shall have effect as if in section 2(1)(b) of the Family Allowances Act 1945 (which defines “child” as including a person under eighteen who is undergoing full-time instruction in a school or who is an apprentice) for the words “eighteen years” there were substituted the words “nineteen years”. Extension of allowances, benefits and grants by increase of age limits from 18 to 19.

(2) In section 17(1)(b)(ii) of the National Insurance Act 1946 and section 19(3)(d) of the Industrial Injuries Act (under which widowed mother’s allowance or industrial injuries death benefit is payable in certain cases to a woman who has a person under

eighteen residing with her) for the words "eighteen years" there shall be substituted the words "nineteen years".

(3) In section 22(3) of the National Insurance Act 1946 (under which death grant is payable in the case of certain persons under eighteen) for the words "eighteen years" there shall be substituted the words "nineteen years".

Increase of widow's allowance, widowed mother's allowance, child's special allowance and industrial injuries death benefit for widow with children.

2.—(1) Subject to this section, the weekly rates of widow's allowance, widowed mother's allowance and child's special allowance shall be those set out in the following Table, which shall be inserted in Schedule 2 to the National Insurance Act 1946 after Part I of that Schedule.

PART IA

Rates of widow's allowance, widowed mother's allowance and child's special allowance

1 Description of benefit	2 Weekly rate	3 Increase for only child or elder or eldest child	4 Increase for second child	5 Increase for third and each additional child
	s. d.	s. d.	s. d.	s. d.
Widow's allowance	95 0	37 6	29 6	27 6
Widowed mother's allowance	67 6	37 6	29 6	27 6
Child's special allowance	37 6	—	29 6	27 6

(2) Section 6(4) of the National Insurance Act 1957 (which makes benefits for a child not living with the beneficiary dependent on equivalent contributions being made to the cost of providing for the child) shall be amended by substituting in paragraph (b) for the words

"or a widow's allowance"

the words

"a widow's allowance or a widowed mother's allowance", and if as a result of that amendment the increase in a widowed mother's allowance under section 17(1)(b)(i) of the National Insurance Act 1946 in respect of the child, or the elder or eldest of the children, mentioned in that sub-paragraph is not payable, and no increase of the allowance is payable in respect of any other child, the widow shall not be entitled to the widowed mother's allowance.

(3) Schedule 1 to this Act (which makes amendments as respects death benefit for children under section 21 of the

Industrial Injuries Act corresponding to the amendments affecting widowed mother's allowance made by subsections (1) and (2) of this section) shall have effect.

(4) The Acts mentioned in Schedule 2 to this Act shall have effect subject to the amendments there specified, being amendments consequent on the provisions of subsection (1) of this section.

3.—(1) In paragraph 5(2) of Schedule 2 to the National Assistance Act 1948 (which, as amended by the National Assistance (Disregard of Assets) Order 1959, requires the disregard of certain weekly payments up to an aggregate of thirty shillings) after paragraph (d) there shall be added the following paragraphs:—

Benefit excluded from computation of resources in connection with national assistance grants.

“(e) the first seven shillings and sixpence a week of any payment in respect of a child, being—

(i) an increase of widow's allowance or widowed mother's allowance under the third or fourth column of Part IA of Schedule 2 to the National Insurance Act 1946, or

(ii) child's special allowance under the second column, or an increase of child's special allowance under the fourth column, of the said Part IA, or

(iii) an increase of death benefit under the first or second column of Part II of the Table in section 21(1) of the National Insurance (Industrial Injuries) Act 1946;

(f) the first five shillings and sixpence a week of any payment in respect of a child, being—

(i) an increase of widow's allowance, widowed mother's allowance or child's special allowance under the fifth column of the said Part IA, or

(ii) an increase of death benefit under the third column of Part II of the said Table.”

(2) The following provisions, being provisions which reproduce the said paragraph 5, that is—

(a) paragraph 3 of Schedule 2 to the Legal Aid and Advice Act 1949, and

(b) paragraph 5 of Schedule 2 to the Legal Aid and Solicitors (Scotland) Act 1949,

and any provisions reproducing the said paragraph 5 which are contained in regulations made under section 4 of either of those Acts, shall all be amended in the manner in which the said paragraph 5 is amended by the foregoing subsection.

(3) This section shall come into force so as to apply in relation to benefit payable under the National Insurance Act 1946 and the Industrial Injuries Act in respect of periods on or after the date appointed for the coming into force of section 2 of this Act (with Schedule 1 to this Act).

Relaxation of
earnings rules
for widow's
benefit and
retirement
pensions.

4.—(1) For section 17(3) of the National Insurance Act 1946 (earnings rule for widow's benefit) there shall be substituted the following subsection—

“(3) Where the earnings of the widow have exceeded—

- (a) one hundred and forty shillings for the calendar week ending last before any week for which she is entitled to a widowed mother's allowance, or
- (b) one hundred shillings for the calendar week ending last before any week for which she is entitled to a widow's pension,

the weekly rate of the allowance or pension shall for the week for which she is so entitled be reduced by sixpence for each complete shilling of the excess and a further sixpence for each complete shilling by which the earnings exceeded, in the case of a widowed mother's allowance, one hundred and sixty shillings, or, in the case of a widow's pension, one hundred and twenty shillings.”

(2) For section 20(5) of the said Act (earnings rule for retirement pensions) there shall be substituted the following subsection—

“(5) Where the earnings of a beneficiary who is less than five years over pensionable age have exceeded one hundred shillings for the calendar week ending last before any week for which he is entitled to a retirement pension, the weekly rate of his pension shall for the last mentioned week be reduced by sixpence for each complete shilling of the excess and a further sixpence for each complete shilling by which the earnings exceeded one hundred and twenty shillings :

Provided that this subsection shall not affect the rate of the pension for the first week after the date of the beneficiary's retirement.”

(3) The National Insurance (Earnings) Regulations 1963 made in exercise of the power conferred by section 2 of the National Insurance Act 1956 (which are superseded by the foregoing subsections) shall be revoked but this section shall not prejudice the further exercise of that power.

(4) This section shall have effect as respects any week commencing on or after the date of the coming into force of this section.

5. There shall be defrayed out of moneys provided by Parliament— General financial provisions.

(a) any increase attributable to section 1 of this Act in the sums payable out of moneys provided by Parliament under the Family Allowances Act 1945 whether on account of allowances or of the expenses of the Minister,

(b) subject to the provision made by section 38 of the National Insurance Act 1946 for reimbursement out of the National Insurance Fund or by section 60 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund, any increase attributable to this Act in the expenses of the Minister or of any other Government department which are payable out of moneys so provided under either of those sections,

and for the purposes of this section the expenses of the Minister shall include sums paid by the Minister under section 19(2) of the Post Office Act 1961 which, in accordance with section 13 of the Family Allowances and National Insurance Act 1961, are treated for the purposes of the Family Allowances Act 1945, the National Insurance Act 1946 or the Industrial Injuries Act as expenses of the Minister in carrying those Acts into effect.

6.—(1) This Act may be cited as the Family Allowances and National Insurance Act 1964. Citation, commencement, repeals, extent, etc.

(2) This Act, so far as it relates to the subject matters of those Acts respectively, may be cited—

(a) together with the Family Allowances Acts 1945 to 1961, as the Family Allowances Acts 1945 to 1964, and

(b) together with the National Insurance Acts 1946 to 1963, as the National Insurance Acts 1946 to 1964, and

(c) together with the National Insurance (Industrial Injuries) Acts 1946 to 1963, as the National Insurance (Industrial Injuries) Acts 1946 to 1964.

(3) Schedule 3 to this Act shall have effect with respect to the commencement of this Act and to the transitional and other matters there dealt with.

(4) Subject to any transitional provision in Schedule 3 to this Act, the enactments mentioned in Schedule 4 to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(5) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provisions relating to

Northern Ireland of the Acts referred to in subsection (2) above, this Act shall not extend to Northern Ireland.

(6) In this Act "the Industrial Injuries Act" means the National Insurance (Industrial Injuries) Act 1946.

(7) Any reference in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or applied by any other enactment including this Act.

SCHEDULES

SCHEDULE 1

Section 2.

DEATH BENEFIT IN RESPECT OF CHILDREN UNDER INDUSTRIAL INJURIES ACT

1. For section 21(1) of the Industrial Injuries Act there shall be substituted the following subsections—

“(1) Where at his death the deceased had a family which included a child or children then—

- (a) for any period during which a person has a family which includes that child or one or more of those children, that person shall be entitled in respect of the child or the elder or eldest of those children to death benefit by way of an allowance at the weekly rate specified in the first column of Part I of the following Table, and
- (b) for any such period during which the family includes two or more of those children, that person shall be entitled to death benefit by way of an allowance at the weekly rate specified in the second column of the said Part I in respect of the second of those children, and
- (c) for any such period during which the family includes more than two of those children, that person shall be entitled to death benefit by way of an allowance at the weekly rate specified in the third column of the said Part I in respect of each of those children other than the first two.

TABLE

PART I

Weekly rates of allowances in respect of children

Allowance for only or elder or eldest qualifying child	Allowance for second qualifying child	Allowance for third and each additional qualifying child
s. d. 20 0	s. d. 12 0	s. d. 12 0

PART II

Increase where the family is that of the widow of the deceased

17 6	17 6	15 6
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(1A) Where the person having the family is the widow of the deceased and is for the time being also entitled to death benefit (other than a gratuity) under section 19 of this Act,

SCH. 1 the weekly rates of the allowances in Part I of the said Table shall be increased respectively by the corresponding amounts in Part II of that Table.

(1B) The foregoing subsections shall have effect subject to the provisions of the Fourth Schedule to this Act limiting the benefit payable in respect of any death."

2.—(1) Section 6(4)(f) of the National Insurance Act 1957 (which makes certain benefits for a child not living with the beneficiary dependent on equivalent contributions being made to the cost of providing for the child) shall apply to all death benefit under the said section 21, and accordingly the words from "otherwise" to the end of the paragraph shall be omitted.

(2) In the case of an allowance which would, but for the said section 6(4)(f), be payable in respect of a child not living with the beneficiary at a weekly rate increased under Part II of the Table in the foregoing paragraph, the said paragraph (f) shall apply separately to the amount of the allowance without the increase, and to the amount of the increase, but in applying that paragraph to the amount of the increase the contribution required under paragraph (ii) of the said section 6(4) shall be over and above that required under that paragraph as a condition of payment of the allowance without the increase.

Section 2.

SCHEDULE 2

AMENDMENTS CONSEQUENT ON SECTION 2(1)

1.—(1) In section 10(2)(a) of the National Insurance Act 1946 after the words "Part I" there shall be inserted the words "and Part IA".

(2) In section 23(1) of the said Act for the words "a retirement pension or a widow's allowance" there shall be substituted the words "or a retirement pension".

(3) In section 23 of the said Act, after subsection (1) there shall be added the following subsections—

"(1A) The weekly rate of a widow's allowance shall, for any period for which the beneficiary has a family which includes a child or children, be increased—

- (a) in respect of that child or the elder or eldest of those children, by the amount specified for that allowance in the third column of Part IA of the Second Schedule to this Act, plus
- (b) for any period for which the family includes two of those children, the amount so specified in the fourth column of the said Part IA, plus
- (c) for any period for which the family includes more than two of those children, the amount so specified in the fifth column of the said Part IA in respect of the third and each additional child.

(1B) The weekly rate of a widowed mother's allowance shall, if payable under sub-paragraph (i) of section 17(1)(b) of this Act,—

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- (a) be increased, in respect of the child, or the elder or eldest of the children, mentioned in that sub-paragraph by the amount specified for widowed mother's allowance in the third column of the said Part IA, and
- (b) for any period during which the widow has two children of her family such as are mentioned in that sub-paragraph, be increased by the amount specified for that allowance in the fourth column of the said Part IA, and
- (c) for any period during which the widow has more than two such children of her family, be increased in respect of the third and each additional child by the amount so specified in the fifth column of the said Part IA."

2. In section 5(3) of the National Insurance Act 1957 (child's special allowance) for paragraph (b) (down to but not including the proviso) there shall be substituted the words—

"the amount specified for the said allowance in the second column of Part IA of the Second Schedule to the principal Act increased—

- (a) if there are two such children by the amount so specified in the fourth column of the said Part IA, and
- (b) if there are more than two such children by the amount so specified in the fifth column of the said Part IA in respect of the third and each additional child."

3. For paragraphs (ii) and (iii) of section 2(1)(b) of the National Insurance Act 1963 there shall be substituted the following paragraph—

"(ii) any increase in the allowance under section 23(1B) of the said Act of 1946".

SCHEDULE 3

Section 6.

COMMENCEMENT, TRANSITIONAL PROVISIONS, ETC.

General provision for appointed days

1.—(1) Sections 1, 2 and 4 of this Act and Schedules 1, 2 and 4 to this Act shall not come into force until such date as the Minister may by order appoint, and different dates may be appointed for different purposes of this Act or for the same purposes in relation to different cases or classes of case.

(2) Any such order may—

- (a) if the date thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplementary provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the

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period when this Act is to have a partial operation only and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act,

(b) be varied or revoked by a subsequent order under this sub-paragraph.

(3) Any statutory instrument containing an order under this paragraph shall be laid before Parliament after being made.

Transitional provisions for section 1

2.—(1) Except in such cases as the Minister may direct, no payment shall be made under any enactment by virtue of section 1 of this Act in respect of, or by reference to, any person who had before the date appointed for the coming into force of section 1 of this Act (in this and the next two paragraphs referred to as “the appointed date”) attained the age of eighteen years, unless a claim therefor has been made on or after the appointed date in accordance with the requirements of, or of any instrument made under, the enactment in question.

(2) No payment shall be made under any enactment by virtue of section 1 of this Act in respect of any period falling, or by way of a lump sum benefit in respect of any event occurring, before the appointed date.

(3) An award of an allowance or benefit under the Family Allowances Acts 1945 to 1961, the National Insurance Acts 1946 to 1963 or the National Insurance (Industrial Injuries) Acts 1946 to 1963 made in the period between the making of an order under this Schedule appointing the date for the coming into force of section 1 of this Act, and the date so appointed may (so far as relates to an allowance or benefit for periods on and after that date) be made so as to take account of the effect of section 1 of this Act.

3.—(1) Where a person who attains the age of nineteen after the passing of this Act would at the date of the death of some other person, being a death before the appointed date, have been treated as a child of that other person's family if section 1 of this Act had come into force before the date of death, the entitlement of any person to any payment under the National Insurance Acts 1946 to 1963 or the National Insurance (Industrial Injuries) Acts 1946 to 1963 in respect of any period after the beginning of the appointed date shall be determined as if that person had at the date of death been a child of that other person's family.

(2) If on any day in the period between the passing of this Act and the appointed date a woman would have been entitled—

(a) to a widowed mother's allowance under section 17(1)(b) of the National Insurance Act 1946, or

(b) to an allowance by way of death benefit as described in section 19(3)(a) of the Industrial Injuries Act, or

- (c) to a pension by way of death benefit under section 19(3)(d) of the Industrial Injuries Act,

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if section 1 of this Act had come into force at the passing of this Act so as, notwithstanding paragraph 2(2) of this Schedule, to authorise the paying of allowances or pensions in respect of periods falling between the passing of this Act and the appointed date, it shall be assumed for the purposes—

- (i) of section 18(1) of the National Insurance Act 1946 (qualification for widow's pension), and
- (ii) of section 19(3)(b) of the Industrial Injuries Act (qualification for pension by way of death benefit) and so much of section 19(3)(d) of that Act as authorises the payment of a pension where the widow has attained the age of forty at the expiration of a period for which such a pension is payable under the other provisions of that paragraph,

that the widow ceased to be entitled to widowed mother's allowance or, as the case may be, to allowance or pension by way of death benefit on the day, or the latest of the days, on which she would have been entitled to such an allowance (but, in accordance with paragraph 2(2) of this Schedule, not so as to authorise any payment in respect of any period falling before the appointed date.)

4.—(1) Where immediately before the appointed date a person is entitled in respect of a dependant, not being that person's spouse or a child, to an increase in the weekly rate of a benefit—

- (a) under section 24(2) of the National Insurance Act 1946 (unemployment benefit and sickness benefit), or section 24(2A) of that Act (retirement pension), or
- (b) under section 18 of the Industrial Injuries Act (injury benefit and disablement pension), or
- (c) under section 8 of the National Insurance Act 1953 (maternity allowance),

and that dependant becomes a child by virtue of section 1 of this Act on the appointed date, then, during any period during which, had this Act not been passed, that person would have continued without a break to be entitled to that or another such benefit at a weekly rate increased by the like amount in respect of that dependant, he may be treated as being so entitled; and for any period during which he is so treated the dependant shall be treated as not being a child for any purpose of the National Insurance Acts 1946 to 1963 or the National Insurance (Industrial Injuries) Acts 1946 to 1963 except as mentioned below.

(2) Where apart from sub-paragraph (1) above the dependant would be treated as the elder or eldest child, or other child, of a person's family, that sub-paragraph shall not prevent his being so treated for the purpose of determining what benefit, if any, is payable in respect of other children of the family.

(3) Where apart from sub-paragraph (1) above a widow would become entitled to a widowed mother's allowance by reason of the dependant's having become a child as mentioned in that sub-paragraph, that sub-paragraph shall not prevent his being treated

SCH. 3 as a child for the purpose of that allowance, except so far as payable under section 23(1B) of the National Insurance Act 1946.

(4) Where apart from sub-paragraph (1) above a widow would be entitled in respect of the dependant as being a child of her family to death benefit under section 21 of the Industrial Injuries Act, that sub-paragraph shall not prevent her being treated as so entitled for the purpose of determining the rate of any widow's pension payable to her under section 19 of that Act.

Transitional provisions for section 2 and Schedule 1

5.—(1) Where an award of any benefit under the National Insurance Act 1946 or the Industrial Injuries Act has been made, whether before or after the passing of this Act, before the date appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of section 2 of and Schedule 1 to this Act or any regulations made in consequence thereof, then, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before that date) at the higher weekly rate, and the award shall have effect accordingly.

(2) Where any such award—

(a) is made after a date has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate or within a higher maximum weekly rate by virtue of this Act or any regulations made in consequence thereof, and

(b) is made before that date,

the award may provide for the benefit to be paid, as from that date, at the higher weekly rate, or as the case may be, at any weekly rate within the higher maximum rate.

6.—(1) This paragraph shall apply so far as, in the application of section 6(4) of the National Insurance Act 1957 to any payment under paragraphs (a) to (f) of that subsection for a period beginning on or after the date appointed for the coming into force of section 2 of this Act and Schedule 1 to this Act, account is to be taken under paragraph (ii) of the said subsection (4) of contributions to the cost of providing for the child in question for a period before that date.

(2) Where the payment is a widowed mother's allowance or an increase of an allowance under section 21 of the Industrial Injuries Act, the weekly rate of any such contributions satisfying the said paragraph (ii) shall be a weekly rate of not less than thirty shillings.

(3) In any other case, it shall be assumed in applying the said paragraph (ii) to any such contributions that the amount of the payment with which the weekly rate of contribution is to be compared is what it would have been if this Act had not passed.

General transitional provision as to regulations

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7. Section 77 of the National Insurance Act 1946 (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft is laid before Parliament) and section 61(2) of the Industrial Injuries Act (which requires any proposal to make regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) shall not apply to any regulations made, or to any draft of regulations laid before Parliament, before the expiration of the period of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

Construction

8. This Act—

- (a) in so far as it relates to the subject matter of the National Insurance Acts 1946 to 1963 shall be construed as one with the National Insurance Act 1946, and
- (b) in so far as it relates to the subject matter of the National Insurance (Industrial Injuries) Acts 1946 to 1963 shall be construed as one with the Industrial Injuries Act.

SCHEDULE 4

Section 6,

REPEALS

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 67.	The National Insurance Act 1946.	In section 17(1)(b)(i) the words from "and who" to the end of the said sub-paragraph (i), excluding the word "or". In section 17(1)(b)(ii) the words "while not having such a family as aforesaid". In section 23(1) the words from "and the weekly rate of a widowed mother's allowance" to the end of the subsection. In Schedule 2 Part I, the entries relating to widow's allowance, widowed mother's allowance and child's special allowance.
14 & 15 Geo. 6. c. 34.	The National Insurance Act 1951.	Section 2(3). Section 3(5).
4 & 5 Eliz. 2. c. 47.	The National Insurance Act 1956.	Section 1. In section 2 the words "as amended by the National Insurance Act, 1951, and this Act".

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Chapter	Short Title	Extent of Repeal
4 & 5 Eliz. 2. c. 50.	The Family Allowances and National Insurance Act 1956.	In the Schedule, in paragraph 1, the repeals in section 17(1)(b) (i) and section 17(1)(b)(ii) of the National Insurance Act 1946 as set out above, in paragraph 5 the words from "and at the end" to the end of the paragraph, and paragraph 10.
5 & 6 Eliz. 2. c. 26.	The National Insurance Act 1957.	In section 6(4)(f) the words from "otherwise" to the end of paragraph (f).
9 & 10 Eliz. 2. c. 5. 1963 c. 7.	The National Insurance Act 1960. The National Insurance Act 1963.	In Schedule 4, paragraph 5. Section 2(2). In Schedule 2 the entries relating to widow's allowance, widowed mother's allowance and child's special allowance. In Schedule 3, Part II and Part III, the entries relating to section 21(1) of the Industrial Injuries Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
National Assistance Act 1948	11 & 12 Geo. 6. c. 29.
Legal Aid and Advice Act 1949	12, 13 & 14 Geo. 6. c. 51.
Legal Aid and Solicitors (Scotland) Act 1949 ...	12, 13 & 14 Geo. 6. c. 63.
Post Office Act 1961	9 & 10 Eliz. 2. c. 15.